

Performance Work Statement (PWS)
for the
Restoration of Containers for Requiring Activity
SECTION I: DESCRIPTION OF SERVICES

1.0 General

The contractor shall perform required services for Requiring Activity containers to repair major defects and damage.

1.1. Introduction and Background. The current container readiness within Requiring Activity containers is relatively low across the battalion, making it ineffective to support large scale exercises with equipment movements that require containers. We are requesting that (20) containers (Quadcons) are restored to MIL-STD-3037 inspection standards for the S-3 Mobility Section to effectively maintain a container pool to support the battalion's deployment cycles.

1.2. Scope of Work and Objective. The restoration of (20) containers (Quadcons) back to MIL-STD-3037 inspection standards. MIL-STD-3037 inspection standards means that there are no major holes, proper seals in place around the doors, doors that are in working condition, rust-free, serial number spray painted onto the finish product and prepared to be deployable once restored.

1.3. Period of Performance. The period of performance of this contract is June 2nd, 2025, to July 1st, 2025

1.3.1. Federal Holidays. The contractor shall not be required to provide services on federal holidays unless the holiday is particularly specified otherwise in this PWS.

Federal Holiday	Occurrence
New Year's Day	1 January*
Martin Luther King Jr.'s Birthday	3rd Monday of January
President's Day	3rd Monday of February
Memorial Day	last Monday of May
Independence Day	4 July*
Labor Day	1st Monday of September
Columbus Day	2nd Monday of October
Veterans Day	11 November*
Thanksgiving Day	4th Thursday of November
Christmas Day	25 December*

* When federal holiday falls on Sunday, the following Monday will be observed as a holiday by the U.S. government. When a federal holiday falls on a Saturday, the preceding Friday will be observed as a holiday.

In addition to these federal holidays, if the President of the United States issues an executive order closing the federal government, that date shall also be considered a recognized federal holiday (Reference Executive Order 11582 of February 11, 1971, and 5 U.S.C. 5546 and 6103(b) and other similar statutes insofar as they relate to the pay and leave of employees of the United States).

1.3.2. Typhoon Conditions. Japan-based military installations close when Tropical Cyclone Condition of Readiness 1C (TCCOR 1C or TC-1C) is declared by Military Weather Station authorities. The Contractor will be required to depart military bases, remain indoors, and monitor radio/television to determine when the TCCOR changes to TCCOR SW (Storm Watch) or TCCOR AC (All Clear). When TCCOR SW is declared by Military Weather Station authorities, the Contractor shall restart the service within 2 hours. If that occurs after normal business hours, services shall begin the next normal workday at 7:30am.

2.0 Place of Performance. Requiring Activity's Building in Okinawa Japan.

3.0 Technical Requirements (Description of Work / Tasks)

3.1 The contractor will Remove/Replace vinyl stencils, ISO Registration plates.

3.2 The contractor will perform rust removal, cleaning, priming, application of rust-prohibitive materials, painting, lubricating.

3.3 The contractor will remove/reapply a sealant compound.

3.4 The contractor will remove/reapply undercoating with waterproof coating the entire underside of the container.

3.5 The contractor will replace or repair all broken or unsalvageable parts.

3.6 The contractor will be patching repair of a wall, roof, or door panel that adds or replaces material without complete replacement of the panel.

3.7 The contractor will re-apply new primer, rust-prohibitive and two coats of paint.

3.8 The contractor will patch holes with a metal sheet by welding.

3.9 The contractor will stencil container numbers on front and back sides.

3.10 The contractor will use Gasket Seal provided by Requiring Activity.

3.11 The contractor will submit Inspection Report after each Inspection. (Five (5) Containers at the time)

3.12 The contractor will install Temporary Portable Tents for the working space.

3.13 The contractor will provide a Forklift & 20ft Storage Container owned by the contractor.

3.14 The contractor will use MIL-DTE-53039E: Coating, Aliphatic Polyurethane, Single Component, Chemical Agent Resistant 2.5 when recoating the Containers.

3.15 The contractor shall use MIL-DTE-53072C: Chemical Agent Resistant Coating (CARC) System Application Procedures and Quality Control Inspection when recoating the Containers.

4.0 Delivery or Deliverables N/A

4.1 Listed below are the containers (Quadcons) needing the services listed in Section 3.0:

1. USMU0129007
2. USMU0129687
3. USMU0174480
4. USMU0268928
5. USMU0276245
6. USMU0276780
7. USMU0330114
8. USMU0330259
9. USMU0387188
10. USMU0387362
11. USMU0388121
12. USMU0388374
13. USMU0388435
14. USMU0388440
15. USMU0389344
16. USMU0389452
17. USMU0417050
18. USMU0426216
19. USMU0501475

20. USMU1103239

5.0 Applicable Documents / Governing References. In addition, requirements of regulations and policies applicable to this contract/order by virtue of clauses contained herein, the contractor shall, in the performance of this contract/order, also comply with all references applicable to the specific tasks of this Performance Work Statement, as listed below, including any amendments or subsequent issuance.

Reference	Location
MCO 4690.1A Marine Corps Container Management Policy	MCO 4690.1.pdf (menlosecurity.com)
MIL-STD-3037	https://quicksearch.dla.mil/Transient/C44091239E4B47B8A7950108F2CBD17E.pdf

6.0 Government Furnished Facilities, Equipment, Services and/or Information. Government property identified herein, or by attachment, is subject to the requirements of FAR and DFARS part 45, pursuant to the enumerated property clauses incorporated in this contract/order.

7.0 Special Instructions and Administrative Information

7.1. Non-Personal Services. This is a non-personal service, performance-based contract. The contractor bears responsibility to manage its employees and guard against any actions that could be characterized as personal services as defined in FAR 37.104, or which convey the perception that personal services are being delivered. No provisions are implied nor provided in this contract for any benefits such as medical care, retirement, or worker's compensation, other than those incorporated through enumerated clauses.

7.2. Identification of Contractor Personnel and Equipment. In accordance with DFARS 211.106, contractor personnel performing non-personal services on DoD installations or other government facilities shall ensure that they are readily identifiable as contractor employees (including subcontractors and consultants). All contractor employees shall comply with the following at all times:

7.2.1. Telephone Identification. Identify themselves as contractor personnel at the onset of every telephone call made from a government telephone or any other phone if the call is made in support of Government-related requirements and activities.

7.2.2. Recorded Messages. Identify themselves as contractor personnel in all recorded messages including those, which are heard by callers attempting to contact contractor employees via answering machines or voicemail.

7.2.3. Meetings, Conferences and Events. Identify themselves as contractor personnel at the onset of every meeting, conference or any other gathering attended in support of any Government related requirements or activities.

7.2.4. Correspondence. Identify themselves as contractor personnel on any correspondence, documents, or reports accomplished or sent in support of any service provision to the Government, including, but not limited to, correspondence sent via the U.S. Mail, facsimile, or electronic mail (email) inclusive of out-of-office replies.

7.2.5. Personal and Corporate Identification. Wear or display contractor provided nametags, badges or attire which display, at a minimum, the name of the contractor and their respective company.

7.3. Designated Third Country Nationals (DTCN). Persons from certain countries are considered DTCN and are generally restricted from entering Marine Corps Bases Japan (MCBJ) Camps, Air Stations, or facilities. A listing of

DTCN countries and other related information regarding this policy can be found in USFJ Instruction 31-204 (Designated Third Country Nationals), which can be made available upon request.

7.4. Exemption from Japanese Taxes. Pursuant to the U.S. – Japan Status of Forces Agreement and the Joint Committee, the governments of the United States and Japan have agreed that the procurement in Japan of materials, supplies, equipment and services for official purposes may be except from certain Japanese taxes. When incorporated, paragraph c. of the clause FAR 52.229-6, “TAXES – FOREIGN FIXED PRICE CONTRACTS” and/or DFARS 225.229-7001 ‘TAX RELIEF’ stipulate that contract/order pricing shall not include the Consumption Tax. Submission of, and/or incorporation into the contract of, your offer, certifies that pricing does not contain any cost related to the Consumption Tax. Questions concerning this matter should be directed to your local Japanese Tax Office.

7.5. Subcontract Management. The contractor shall be responsible for any subcontract management necessary to integrate work performed on this requirement and shall be responsible and accountable for subcontractor performance on this requirement. The prime contractor will manage work distribution to ensure there are no Organizational Conflict of Interest (OCI) considerations. Contractors may add subcontractors to their team after notification to the Procuring Contracting Officer (PCO) or Contracting Officer Representative (COR). Cross teaming may or may not be permitted.

7.6. Mission Essential Personnel / Tasks. Unless specified otherwise in this Performance Work Statement, contractors supporting this contract/order are not considered “Mission Essential” personnel (as defined in DFARS 237.76) who would be required during crisis or emergency operations.

7.7. Hazardous Materials and Safety. The Contractor and its subcontractors shall comply with all applicable laws, including Public Law 91-596 (*Occupational Safety and Health Administration (OSHA)*) and DOD Directive 4715.1E, *Environmental, Safety, and Occupational Health (ESOH)*). Contractor personnel performing services on a DOD installation shall participate in local Voluntary Protection Programs (VPP). Information on the VPP is available at <http://www.osha.gov/dcsp/vpp/index.html>

7.8. Installation Access and Personnel Credentialing

7.8.1. Motor Vehicles. Vehicle licensing, registration, and insurance requirements must all be conducted in accordance with host nation law, USFJ Instruction 31-205, and applicable local installation policies.

7.8.1.1. Registration/Permits. Vehicle registration on Okinawa, Japan is conducted with the Provost Marshal via the Joint Services Vehicle Registration Office (JSVRO) at Bldg 5638, Marine Corps Base, Camp Butler. Information may be obtained at JSVRO website at: <https://www.mcbbutler.marines.mil/Base-Information/Vehicle-Registration/>, or by calling +81-(0)98-970-7481.

7.8.1.2. Registration Termination. Vehicle permits will expire upon termination date of this contract/order, expiration of an individual base pass or DBIDS ID, expiration of vehicle inspection sticker, or termination of their employment (whichever occurs first). Permits issued to individuals who overstay any of these authorized dates become void and invalid.

7.8.1.3. Insurance. Vehicle permitting procedures require that all vehicles, personal or corporate, must be properly inspected and insured in accordance with Japanese Compulsory Insurance (JCI) requirements. Additionally, for SOFA status personnel and U.S. corporate vehicles, the Contractor or SOFA status individual is required to procure and maintain, during the entire period of performance under this contract, the following minimum insurance on each vehicle used by the Contractor at the work site:

Automobile Property Damage Insurance Amount: ¥30,000,000 (or U.S. Dollar equivalents)
Bodily Injury Insurance Amount: ¥30,000,000 Yen (or U.S. Dollar equivalents)

Prior to the commencement of work, the Contractor shall furnish to the Contracting Officer a certificate or written statement of the above required insurance for any and all corporate vehicles to be used. The policies evidencing

required insurance shall contain an endorsement to the effect that cancellation or any material change in the policies adversely affecting the laws of the state in which this contract is to be performed and in no event less than thirty (30) days after written notice thereof to the Contracting Officer.

7.8.1.4. Road Laws. All personnel operating motor vehicles under this contract/order are subject to U.S. military installation regulations and Japanese Road Laws. Failure of the contractor, its employees, or its sub-contractors, to comply, may result in revocation of driving privileges or other legal action.

7.8.1.5. Vehicle Disposal. Personnel protected under the Status of Forces Agreement (SOFA) are required by regulation to properly dispose of vehicles prior to departure from Japan. For individuals performing under this contract, the contractor may be held financially liable for vehicles abandoned, or vehicles not disposed of properly, in accordance with vehicle regulations as agreed with the Government of Japan.

7.8.2. Personnel Access / Credentialing. Access to local installations is inherently required to accomplish specified tasks under this contract/order. The contractor shall therefore ensure all necessary actions are taken to obtain such access by its personnel in time to affect access in accordance with the requirements of the PWS and POP. Failure to complete such actions in a timely manner, some of which may occur prior to the POP or individual mobilization/relocation to the place of performance, shall not constitute excusable delay. Upon request, the Contracting Officer will provide a 'check-in' sheet that summarizes required actions.

7.8.2.1. Common Access Cards (CAC). Provided the clause 52.204-9 is incorporated, personnel performing on this contract/order may require a CAC. Pursuant to FAR 52.204-9, the CAC is DoD's Personal Identity Verification (PIV) system; DoD procedures for CAC issuance are applicable and incorporated herein, as governed by DODI/M series 1000.13, DODI 5200.46, and other regulations. All personnel to be issued CAC must meet eligibility and suitability criteria as specified in the references; accordingly, the vetting procedures and required personnel actions may often begin well before the contract/order POP. The contractor and its employees and/or subcontractors are responsible for ensuring timely action and suitability to obtain CACs, and any resultant access issues from non-compliance shall not constitute excusable delay.

7.8.2.2. Base Passes and/or Defense Biometrics Identification System (DBIDS) cards. Personnel that do not qualify for CAC require an alternate credential for installation access, as governed by Marine Corps Installations Pacific Order 5512.2, which can be provided upon request. The process to request access requires approval from the Contracting Officer in an access request letter.

7.8.2.3. Return and/or Disposal of Access Credentials. The contractor's employees shall return to the applicable issuing office all base passes, DBIDS cards, and/or CAC, immediately upon termination of employment or completion of this contract and certification of receipt shall be obtained and submitted to the Contracting Officer. The Contractor shall submit a listing of employees terminated under this contract to the Contracting Officer within seven (7) days of the effective date of termination.

7.8.2.4. Status of Forces Agreement. Possession of a CAC or other credential does not, alone, determine the legal status of personnel performing under this contract. Additionally, unless specifically identified on the CAC, the credential does not necessarily authorize logistical support privileges such as commissary/exchange access. The individual status of personnel performing under this contract, and the privileges authorized, are governed in accordance with United States Force Japan Instructions (predominantly USFJI 64-100), applicable credentialing regulations, and the information prescribed via DFARS clauses regarding Contractor Personnel in Japan, as contained herein.

7.9. Privacy Act. Pursuant to FAR clause 52.224-3, as incorporated, DoD requires agency-specific Privacy Act training as prescribed in DODM 5400.11-R. DODM 5400.11-R also prescribes required actions regarding information and privacy, which are applicable to the contractor and its personnel performing under this contract/order. The regulation may subject the contractor and/or contractor's personnel to criminal liability under Title 18, Section 793 and 7908 of the United States Code.

7.10. Key Control. The Contractor shall establish and implement methods of ensuring that all keys issued to the Contractor by the government are not lost or misplaced and are not used by unauthorized persons. The Contractor shall report lost keys

to the COR. The Contractor shall not duplicate any keys. It is also the responsibility of the Contractor to prohibit the opening of locked areas by the Contractor's employees to permit entrance of persons other than Contractor's employees engaged in the performance of assigned work in those areas. In the event keys are lost or unauthorized duplication occurs through the fault of a Contractor employee, The Government may, at its option, require the Contractor to replace keys, reimburse the government for replacement of locks, or re-key as a result of Contractor losing keys. In the event a master key is lost or duplicated, the Contractor shall replace all locks and keys for that system and the total cost will be deducted from the monthly payment.

7.11. Travel. Travel costs are NOT reimbursable unless specifically provided for in this order/contract through an enumerated cost reimbursable Contract Line-Item Number (CLIN) entitled Travel.

7.11.1. Travel Pre-Authorization. All travel shall be pre-approved, in writing, by the Contract Officer or COR. The request shall include total cost, and itemized airfare, rental vehicle, per diem, mileage, parking, fuel and toll charges. Travel requests will include the purpose of the trip and why VideoTeleConference (VTC) or phone conversations would not meet the business requirement. Costs for travel shall be billed in accordance with the regulatory implementation of Public Law 99-234 and FAR 31.205-46 Travel Costs

7.11.2. Authorized Travel. Authorized travel costs will only be reimbursed for:

- Contractor employees who otherwise perform direct day-to-day services at the designated place of performance under the requirements of this order/contract,
- Who have a need to travel to fulfill the performance of those duties, and
- Upon the direct request and written pre-approval of the Contracting Officer (KO) or appointed Contracting Officer Representative (COR)

7.11.3. Unauthorized Travel. Travel costs are explicitly not reimbursable for the following:

- Relocation or initial mobilization costs, or any other travel not pre-approved by the KO or COR,
- Contractor personnel who indirectly support this order/contract (such as visiting management or supervisory personnel not otherwise providing on-site day-to-day support),

7.11.4. Foreign Travel

7.11.4.1. Compliance with DoD Foreign Clearance Guide (FCG). Personnel performing under this contract who may be required to travel to other countries during performance, shall comply with all FCG prescriptions for each country to be visited. Access to the FCG can be found here: <https://www.fcg.pentagon.mil/fcg.cfm>. Contractors unable to access the site, or otherwise requiring assistance, shall contact the contracting officer, or appointed Contracting Officer Representative (COR) for assistance.

7.11.4.2. Compliance with U.S. Indo-Pacific Command (INDOPACOM) and other directives. Contractor personnel traveling within the INDOPACOM Area of Responsibility (AOR) are subject to, and shall comply with, INDOPACOM directives related to such travel. Additionally, contractor personnel traveling in support of exercises, or other specified events and activities, shall comply with applicable travel instructions published for the designated area or event, as issued by General Order, Planning Conference Memorandum, Exercise Directive, Initiating Directive, or other similar correspondence.

7.11.4.3. Personnel with security clearance are subject to additional requirements and shall consult with the supported command G-2 when contemplating and/or completing foreign travel.

7.11.5. Allowable Costs

7.11.5.1. All travel shall be conducted in accordance with Federal Travel Regulations (FTR) and/or U.S. Department of State Standardized Regulations (DSSR).

7.11.5.2. Reimbursement is strictly limited to only those direct costs authorized in FAR 31.205-46. Overhead and/or G&A expenses are not allowable.

7.11.5.3. As indicated in FAR 31.205-46(a)(3)(iv), 31.205-46(a)(7), and 31.250-46(b), all costs must be supported by appropriate documentation and receipts provided to the KO/COR.

7.12. Quality Control and Quality Assurance. In accordance with FAR part 46, and the respective enumerated clauses incorporated in this contract/order, the contractor is reminded that the government may conduct Quality Assurance actions, inspect the Contractor's Quality Control Plan and records, and take remedial actions as necessary, at any time through the duration of this contract/order.

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk, linked at <https://sam.gov/SAM/>.

SECTION II: PERFORMANCE REQUIREMENT SUMMARY

Task	Performance Objective	PWS Reference	Performance Standard	Acceptable Quality Level	Surveillance Method	Incentive
Repair major defects and damage to 20 Containers.	Contractor shall restore all (20) Containers	3.1-3.13	<u>Restore (20) containers from June 2nd, 2025, to July 1st, 2025,</u>	Must meet MIL-STD-3037	100 % Inspection	Payment

End Performance Work Statement